

SENATE No. 368

The Commonwealth of Massachusetts

PRESENTED BY:

Adam Gómez

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to reduce exclusionary discipline for grooming and dress code violations.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Adam Gómez</i>	<i>Hampden</i>	
<i>Michael J. Barrett</i>	<i>Third Middlesex</i>	<i>2/1/2025</i>
<i>Joanne M. Comerford</i>	<i>Hampshire, Franklin and Worcester</i>	<i>2/4/2025</i>
<i>Jason M. Lewis</i>	<i>Fifth Middlesex</i>	<i>2/4/2025</i>
<i>Sal N. DiDomenico</i>	<i>Middlesex and Suffolk</i>	<i>2/20/2025</i>
<i>John F. Keenan</i>	<i>Norfolk and Plymouth</i>	<i>2/27/2025</i>
<i>Liz Miranda</i>	<i>Second Suffolk</i>	<i>3/24/2025</i>
<i>Robyn K. Kennedy</i>	<i>First Worcester</i>	<i>6/11/2025</i>
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>12/16/2025</i>

SENATE No. 368

By Mr. Gomez, a petition (accompanied by bill, Senate, No. 368) of Adam Gomez, Michael J. Barrett, Joanne M. Comerford, Jason M. Lewis and other members of the Senate for legislation to reduce exclusionary discipline for grooming and dress code violations. Education.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 290 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to reduce exclusionary discipline for grooming and dress code violations.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 37H of Chapter 71 as appearing in the 2022 Official Edition is
2 hereby amended by inserting after subsection (g) the following:-

3 (h) Any rules related to student dress or grooming included in a school district or charter
4 school's code of student conduct or otherwise adopted by the school district or charter school
5 shall (1) make no distinction, discrimination, or restriction on account of sex or gender identity
6 (2) not treat students differently or have a disparate impact on any student based on that student's
7 race, national origin, religion, disability, age, sexual orientation, or gender identity (3) be clear,
8 specific, and objective in defining terms, if used; (4) prohibit any school district or charter school
9 employee from enforcing any rules related to student grooming and dress by direct physical
10 contact with a student or a student's attire; and (5) prohibit any school district or charter school

employee from requiring a student to undress in front of any other individual, including the enforcing school district or charter school employee, to comply with the rules related to dress or grooming. Nothing in this section shall limit the rights students are already permitted under Chapter 71, Section 82 of 21 Massachusetts General Laws or any other state or federal laws relating to a student's right to freedom of expression.

SECTION 2. Section 37H $\frac{3}{4}$ of Chapter 71 as appearing in the 2022 Official Edition is hereby amended by inserting as the last sentence of subsection (a) the following -: In addition to any rights students may have, in no cases may a school district or charter school suspend a student solely on the basis of an alleged violation of rules related to student dress and grooming, provided however that a school district or charter school may require students to wear clothing of a specific color, and provided further that nothing herein shall limit school districts or charter school from taking action to prevent bullying of any student as defined in M.G.L Chapter 70, section 370 or harassment of any student on account of race, color, sex, gender identity, religion, national origin, or sexual orientation.

SECTION 3. The changes detailed in Sections 1 and 2 shall take effect 60 days after passage of this act.

SECTION 4. The Department of Elementary and Secondary Education shall adopt, promulgate, amend and rescind rules and regulations or formulate policies and recommendations as necessary, including training, to effectuate the purpose of Sections 1 and 2.